

23STCV13158 23STCV13158

County: los-angeles

Division: Civil Law and Motion

Department: 516

Hearing date: 2026-07-30

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Case Number: 23STCV13158 Hearing Date: July 30, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: July 30, 2026

Case Name: Tumanova v. John Veras, et
al.

Case

No.: 23STCV13158

Matter: Motion for Summary Adjudication

Moving

Party: Defendant/Cross-Complainants

Moss Management Services, Inc. doing business as Moss & Company, and 8300

De Longpre Vila B, LP

Responding Party: Defendant/Cross-Defendant Alltime

Maintenance, Inc.

Tentative Ruling: Defendant/Cross-Complainants

Moss Management Services, Inc. doing business

as Moss & Company, and 8300 De Longpre Vila B, LP's motion for
summary adjudication is granted in part and denied in part.

Plaintiff Vera

Tumanova ("Plaintiff") filed this action against Defendants Moss & Company, Villa Delongpre, JohnVeras, and Does 1 through 20. The Complaint alleges two causes of action for: (1) premises liability; and (2) general negligence.

On January

27, 2025, Moss Management Services, Inc. doing business as Moss & Company, and 8300 De Longpre Vila B, LP, named as Villa Delongpre and Doe 1 ("Cross-Complainants"), filed a Cross-Complaint ("XC") against Defendant/Cross-Defendant Alltime Maintenance, Inc. ("Cross-Defendant"). The XC alleges seven causes of action for: (1) express breach of contractual duty to defend and/or pay defense costs from the outset; (2) express breach of contract, but excluding breach of duty to defend and/or pay costs; (3) equitable and implied contractual indemnity; (4) contribution; (5) declaratory relief; (6) declaratory relief for duty to indemnify and to hold harmless; and (7) apportionment of fault.

Cross-Complainants

move for summary adjudication. Cross-Defendant opposes.

Legal Standard

"A party

may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, . . .

if the party contends that . . . there

is no affirmative defense to the cause of action, that there is no merit to an

affirmative defense as to any cause of action . . . A motion for summary

adjudication shall be granted only if it completely disposes of a cause of

action, an affirmative defense, a claim for damages, or an issue of duty." (Code

Civ. Proc., § 437c, subd. (f)(1).)

"The party

moving for summary judgment bears the burden of persuasion that there is no

triable issue of material fact and that he is entitled to judgment as a matter

of law." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.)

A triable issue of material fact exists if the evidence would allow a

reasonable trier of fact to find the underlying fact in favor of the party

opposing the motion in accordance with the applicable standard of proof. (Ibid.)

"When

deciding whether to grant summary judgment, the court must consider all of the

evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal. App. 4th 463, 467; Code Civ. Proc. § 437c, subd. (c).)

Evidentiary Objections

Cross-Complainants

make three evidentiary objections to Igal Shakh’s deposition. The Court overrules all three evidentiary objections.

Request for Judicial Notice

Cross-Complainants

request that the Court take judicial notice of seven items: (1) Plaintiff’s Complaint; (2) Plaintiff’s Complaint amendment naming Cross-Defendant; (3) Cross-Complainants XC; (4) Requests for Admissions served on Cross-Defendant; (5) the contract between 8300 De Longpre VILA B, LP and Cross-Defendant; (6) Cross-Defendant’s responses to Requests for Admissions; and (7) Plaintiff’s Complaint amendment naming Cross-Defendant.

The Court

grants Cross-Complainants’ request for judicial notice pursuant to Evidence Code section 452, subdivision (d) to requests 1, 2, and 3.

The Court

grants Cross-Complainants’ request for judicial notice pursuant to Evidence Code section 452, subdivision (h) to request 5.

The Court

denies Cross-Complainants’ request for judicial notice to requests 4 and 6. The Court also denies Cross-Complainants’ request number 7 because the Court granted judicial notice per request 2.

Analysis

Cross-Complainants

move for summary adjudication on the following two issues to establish that:

(1) Cross-Defendant owes a contractual duty to defend or to pay for

Cross-Complainants' defense costs from the outset of Plaintiff's action; and
(2) the Court to grant Cross-Complainants' fifth cause of action for
declaratory relief.

Issue

One

"Parties to

a contract, including a construction contract, may define therein their duties
toward one another in the event of a third party claim against one or both
arising out of their relationship." (Crawford v. Weather Shield Mfg., Inc.
(2008) 44 Cal.4th 541, 551 (Crawford).) "Indemnity is a contract by
which one engages to save another from a legal consequence of the conduct of
one of the parties, or of some other person." (Civ. Code, § 2772.) Construction
contracts may also assign one party the "responsibility for the other's legal
defense when a third party claim is made against the latter." (Crawford,
supra, 44 Cal.4th at p. 551.) The parties have great freedom to allocate
responsibilities and may only agree "that the promisor's indemnity and/or
defense obligations will apply only if the promisor was negligent, or,
conversely, even if the promisor was not negligent." (Ibid.)

While

indemnity contracts resemble liability insurance policies, their interpretation
differs. "Ambiguities in a policy of insurance are construed against the
insurer, who generally drafted the policy, and who has received premiums to
provide the agreed protection. [Citation.] In noninsurance contexts, however,
it is the indemnitee who may often have the superior bargaining power,
and who may use this power unfairly to shift to another a disproportionate
share of the financial consequences of its own legal fault." (Crawford,
supra, 44 Cal.4th at p. 552 (citations omitted).)

Civil Code

section 2778 defines the rules of interpretation of a contract of indemnity
"unless a contract of intention" is made by the parties. (Civ. Code, § 2778; Crawford,
supra, 44 Cal.4th at p. 553.) Civil Code section 2778 provides that "a
promise of indemnity against claims, demands, or liability "embraces the
costs of defense against such claims, demands, or liability insofar as such
costs are incurred reasonably and in good faith." (Civ. Code, § 2778, subd.
(3).) Civil Code section 2778 also includes that the indemnitor "is bound,
on request of the [indemnitee], to defend actions or proceedings brought

against the [indemnitee] in respect to the matters embraced by the indemnity," but the indemnitee may choose to conduct the defense. (Id. at subd. (4) (emphasis added).) The statute also states that if the indemnitor "neglects to defend the person indemnified, a recovery against the latter suffered by him in good faith, is conclusive in his favor against the former." (Id. at subd. (5).)

"By virtue of these statutory provisions, the case law has long confirmed that, unless the parties' agreement expressly provides otherwise, a contractual indemnitor has the obligation, upon proper tender by the indemnitee, to accept and assume the indemnitee's active defense against claims encompassed by the indemnity provision. Where the indemnitor has breached this obligation, an indemnitee who was thereby forced, against its wishes, to defend itself is entitled to reimbursement of the costs of doing so." (Crawford, supra, 44 Cal.4th at p. 555.)

The issue of duty is a question of law. (Centex Homes v. R-Help Construction Co., Inc. (2019) 32 Cal.App.5th 1230, 1235 (Centex); Linden Partners v. Wilshire Linden Associates (1998) 62 Cal.App.4th 508, 518.)

It is undisputed that Plaintiff alleges that on April 1, 2023, she walked in the common residential hallway of the Subject Property, and she slipped after stepping on wet carpet. (UMF 1.) Plaintiff also amended her Complaint to name Cross-Defendant as Doe 4. (UMF 2.) Plaintiff alleges her cause of action for general negligence against Cross-Complainants and Cross-Defendant. (Cross-Complainants Ex., B-C.) Cross-Complainants filed the XC against Cross-Defendants which included two causes of action for: (1) express breach of contractual duty to defend; and (2) declaratory relief for duty to defend. (UMF 4.) Moreover, it is undisputed that Cross-Complainant 8300 De Longpre Vila B, LP and Cross-Defendant entered into an agreement for Cross-Defendant to perform renovation work in units 108, 109, 207, and 208, and Cross-Defendant was compensated for that work. (UMF 6, 7.)

The Agreement ("Agreement") between Cross-Complainant 8300 De Longpre Vila B, LP and Cross-Defendant states:

§ 9.1.2.11 Section 3.18.1 shall be

amended to read as follows: "To the fullest extent permitted by law the Contractor shall indemnify and hold harmless the Owner, Owner's consultants, and agents and employees of any of them from and against claims, damages, losses and expenses, including but not limited to attorneys' fees, arising out of or resulting from performance of the Work, regardless of whether or not such claim, damage, loss or expense is caused in part by a party indemnified hereunder."

(Cross-Complainants Ex., E, E. A-E (emphasis added).)

Cross-Complainants

argue that per Crawford, Cross-Defendants owe Cross-Complainants a duty to defend them in Plaintiff's action. The Court agrees with Cross-Complainants. By the statutory obligations under Civil Code section 2778, "unless the parties' agreement expressly provides otherwise, a contractual indemnitor has the obligation, upon proper tender by the indemnitee, to accept and assume the indemnitee's active defense against claims encompassed by the indemnity provision. (Crawford, supra, 44 Cal.4th at p. 555.) Civil Code section 2778, subdivision 4 states that the indemnitor "is bound, on request of the [indemnitee], to defend actions or proceedings brought against the [indemnitee] in respect to the matters embraced by the indemnity." (Civ. Code, § 2778, subd. (4).)

Here, the

parties did not address a distinct provision within the provision that Cross-Defendants did not limit the scope as to when or how their duty to defend would not comply with the default statutory provisions of Civil Code section 2778. The court in Crawford addressed that the duty to defend arises "immediately upon a proper tender of defense by the indemnitee, and thus before the litigation to be defended has determined whether indemnity is actually owed." (Crawford, supra, 44 Cal.4th at p. 558.) The Court in Crawford reasoned that the outcome of litigation was not the determining factor but rather the allegations made at the time of the tender to defend. (Ibid.) Like in Crawford, the Agreement between the parties does not limit or exclude the duty to defend that is not statutorily implicated by Civil Code section 2778. (Ibid.)

The court

in UDC-Universal also relied on Crawford and scrutinized a similar provision regarding the indemnification provision against the

indemnitee where “the duty to defend applied to any ‘suit, action or demand brought against [indemnitee] on any claim or demand covered herein.’” (UDC-Universal Development, L.P. v. CH2M Hill (2010) 181 Cal.App.4th 10, 20.)

Cross-Complainants

tendered their request to Cross-Defendant, and Cross-Defendant denied the request. (UMF 10, 11.)

Thus,

Cross-Complainant has established that there is no triable issue of material fact that Cross-Defendant owed Cross-Complainant a duty to defend pursuant to Civil Code section 2778 and that summary adjudication is warranted.

Because

Cross-Complainants have met their burden, the burden shifts to Cross-Defendant to establish that a triable issue of material fact exists that warrants the denial of Cross-Complainants' motion for summary adjudication on this issue.

In opposition,

Cross-Defendant argues that the duty to defend never arose because the undisputed facts “conclusively establish no causal nexus” between its work and Plaintiff's fall. (Opp., 5:1-2.) However, the Court is not persuaded by Cross-Defendant's argument. Cross-Defendant relies on Centex, where the Court stated that “where the plaintiff's complaint alleges facts embraced by the indemnity agreement, the indemnitor has a duty to defend throughout the underlying tort action unless it can conclusively show by undisputed facts that plaintiff's action is not covered by the agreement.” (Centex, supra, 32 Cal.App.5th at p. 1237.) Repeatedly, Cross-Defendant asserts that the burden is on Cross-Complainants to establish that the indemnity provision applies. However, the burden falls on Cross-Defendant to establish that the indemnity provision in the Agreement does not apply in Plaintiff's case, per Centex, as the indemnitor. (Ibid.)

Cross-Defendant's

evidence also does not purport to do what it claims it does to conclusively establish that its work was not embraced by the agreement. Cross-Defendant's Person Most Qualified Igal Shakh identified that there was a leak in one of the units that it worked on, unit 109, but wasn't sure if it would dry in two days because he is not an expert. (Mamian Decl., Ex. 1, 30:3-25.) There was no other testimony that supports the argument that conclusively established that its

work was not embraced by the agreement. Thus, Cross-Defendant did not meet its burden to establish that Plaintiff's action is not covered by the Agreement.

The Court notes

that both parties raised and opposed the Requests for Admissions, but the Court finds that Cross-Complainant's Requests for Admissions also do not purport to do what it argues it does. Requests for Admissions are a useful tool in discovery; if admitted, they constitute a judicial admission. (See *Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 978.) But, in this case, the Requests for Admissions served by Cross-Complainant do not establish the issue of duty. The Requests for Admissions as for Cross-Defendant to admit that there is an Agreement between the parties, that Plaintiff filed a lawsuit, and that Plaintiff made allegations against Cross-Defendant. (Cross-Complainants Ex., E.) These Requests for Admissions provided no additional support to Cross-Complainants' case because the exhibits produced supported Cross-Complainants' arguments.

Thus,

Cross-Defendant has not met its burden to establish that a triable issue of material fact exists that does not warrant the granting of Cross-Complainants' motion for summary adjudication as to the first issue.

The motion for

summary adjudication as to the issue of duty is granted.

Issue

Two

Cross-Complainants also move for the Court to grant summary adjudication as to their fifth cause of action for declaratory relief. However, Cross-Complainants make no legal argument that they are entitled to declaratory relief. In a motion for summary adjudication as to a cause of action must "completely dispose[] of a cause of action." (Code Civ. Proc., §437c, subd. (f)(1).) Here, Cross-Complainants have not done so.

Thus,

Cross-Complainants have not met their burden as to disposing of their fifth cause of action. Because Cross-Complainants did not meet their burden, the burden does not shift to Cross-Defendant.

The motion
for summary adjudication as to the fifth cause of action is denied.

Conclusion

Defendant/Cross-Complainants

Moss Management Services, Inc. doing business as Moss & Company, and 8300
De Longpre Vila B, LP's motion for summary adjudication as to the issue of duty
is granted.

Defendant/Cross-Complainants

Moss Management Services, Inc. doing business as Moss & Company, and 8300
De Longpre Vila B, LP's motion for summary adjudication as to the fifth cause
of action is denied.